

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MARVIN TOBON,

SUMMONS

Index No.:

Plaintiff,

The Basis of Venue is:
Location of Incident

-against-

CITY OF NEW YORK; BENJAMIN GURLEY; JOHN AND
JANE DOE ONE THROUGH EIGHT

Plaintiff designates Bronx County
as the place of trial.

Defendants.

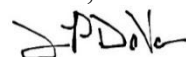
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 23, 2021

Yours, etc.



DEVERNA LAW
John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

Defendants' Addresses:

City of New York, Corporation Counsel; 100 Church Street, NY, NY 10007

BENJAMIN GURLEY, 43RD PRECINCT, 900 Fteley Ave, Bronx, NY 10473

POLICE OFFICERS JOHN AND JANE DOE ONE THROUGH EIGHT; 1 Police Plaza, New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

MARVIN TOBON,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK; BENJAMIN GURLEY; JOHN
AND JANE DOE ONE THROUGH EIGHT

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff MARVIN TOBON, by his attorneys, DEVERNA LAW, as and for their Verified
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.
2. Plaintiff's claims arise out of a July 5, 2020 incident, in which defendants acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate cause, Plaintiff was unlawfully detained within the New York City Police Department within the jurisdictional confines of Bronx County, New York. Plaintiff was falsely charged with Resisting Arrest, Obstructing Governmental Administration, and Harassment in the Second Degree, (arrest B20618359). Plaintiff was deprived of their liberty for

approximately six (6) hours and suffered serious physical and emotional injuries. Plaintiff was maliciously prosecuted until their case was resolved in their favor.

3. Plaintiff in furtherance of their cause of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50, jurisprudence, and in accordance with New York State law.
4. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims or otherwise resolved them.
5. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
6. This action and all associated claims have been timely brought within the applicable statutes of limitations.
7. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
8. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

9. Plaintiff MARVIN TOBON is a resident of the state of New York.
10. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
11. At all times relevant hereto, Defendant City, acting through the NEW YORK CITY POLICE DEPARTMENT, was responsible for the policy, practice, supervision,

implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, agents, office holders, supervisors, as well as the individually named Defendants herein.

12. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
13. At all times relevant hereto, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
14. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
15. Defendant BENJAMIN GURLEY was, at all times here relevant, an INS officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant BENJAMIN GURLEY was, at the time relevant herein, an INS officer in the 43rd Precinct. Defendant BENJAMIN GURLEY is sued in their individual and official capacities.
16. At all times relevant Defendants John and Jane Doe One Through Eight were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the real names and/or shield

number of Defendants John and Jane Doe One Through Eight but such information is believed to be in the possession of the defendants. Defendant John and Jane Doe One Through Eight are sued in their individual and official capacities.

17. At all times relevant herein, Defendants John and Jane Doe One Through Eight were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe One Through Eight, are sued in their individual and official capacities.
18. At all times here the mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
19. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

FACTUAL CHARGES

20. On July 5, 2020, at approximately 4:50am, Plaintiff was lawfully at or near 1158 Boynton Avenue, County of the Bronx, State of New York.
21. At about that date and time, Plaintiff was lawfully present in the area and not obstructing pedestrian or vehicle traffic or otherwise committing any offense or violation of the law.
22. Plaintiff in the courtyard area of 1158 Boynton Avenue in, Bronx NY.

23. While in in the courtyard, Plaintiff observed approximately eight officers approach.
24. Plaintiff attempted to exit the area to check on his cousin's vehicle.
25. Defendant Officers demanded that Plaintiff and others present stay at the location and could not leave.
26. Plaintiff obeyed Defendant Officers' orders.
27. Plaintiff asked Defendant Officers' what was going on and asked why he was not allowed to leave. Defendant Officers' instructed him that the area was potentially a crime scene.
28. Plaintiff stated that he did not understand the situation, and asked Defendant Officers' if he was being detained. Defendant Officers' responded no, but did not allow Plaintiff to leave.
29. At this point a female officer whose identity is unknown at this time began gesturing for Plaintiff and others to move backwards.
30. This officer was very close to Plaintiff and the crowd of others.
31. A male officer pulled up in a police car and exited, walking towards Plaintiff and the crowd.
32. This officer immediately began pushing Plaintiff backwards while screaming "get back."
33. Plaintiff complied and raised his hands with his palms open to indicate he was backing up.
34. Plaintiff simultaneously stated repeatedly "I'm backing up."
35. Defendant Officer continued to shove Plaintiff backward, and proceeded to step on Plaintiffs feet repeatedly.
36. Plaintiff stated, "You're stepping on my Yeezys, can you please stop stepping on me."
37. Plaintiff was backed into a set of scaffolding preventing him from being able to back up any further.

38. Defendant Officer continued to push and step on Plaintiff and placed himself very close to Plaintiff's body, so close that Plaintiff's hands touched Defendant Officers' chest.
39. Defendant Officer proceeded to grab Plaintiff and slam him to the ground, landing on his face and causing Plaintiff's rib to slam into a scaffolding pole.
40. The other Defendant Officers then jumped onto Plaintiff, pulled his hair and put his face to the ground.
41. Defendant Officers then placed Plaintiff in handcuffs and picked him up.
42. Defendant Officers walked Plaintiff to a police car down the block and drove him to the 43rd Precinct.
43. Plaintiff was searched at the precinct and his personal effects taken.
44. Plaintiff was detained at the precinct for six hours.
45. At now point was Plaintiff told what he was being charged with.
46. After six hours, Plaintiff was then given a desk appearance ticket.
47. Plaintiff appeared in person in court once and virtually in court twice before the case was ultimately dismissed and closed.
48. Defendants officers did not have probable cause or reasonable suspicion to detain or arrest Plaintiff.
49. The Defendant officers did not observe Plaintiff committing any crime or violating any law or local ordinance.
50. Plaintiff did not resist arrest.
51. Plaintiff was falsely charged with Resisting Arrest, Obstructing Governmental Administration in the Second Degree, and Harassment in the Second Degree, crimes which

- the Defendants knew or should have known Plaintiff was not involved in the alleged commission of.
52. Based on information and belief, a Defendant supervisor, was present on the scene and did not stop the unlawful arrest of Plaintiff.
53. Some of the Defendant officers who did not participate in the incident but were otherwise present and observed the violation of Plaintiff's constitutional rights failed to intercede on Plaintiff's behalf.
54. After Plaintiff's arrest, Plaintiff was subjected to a search of the intimate parts of his body causing embarrassment and humiliation.
55. The force used by Defendants caused Plaintiff personal, physical, and emotional injuries, the extent of which are still unknown.
56. During all of the events described, Defendants acted maliciously, willfully, knowingly and with the specific intent to injure Plaintiff and violate their civil rights.
57. Defendants prepared false sworn affidavits and false police reports relating to Plaintiff's arrest.
58. Defendants repeatedly falsified information relating to the facts and circumstances surrounding Plaintiff's arrest.
59. The Defendant police officers falsely stated to the Bronx County District Attorney's Office that Plaintiff had committed a crime despite knowing that they lacked a legal and a factual basis to allege that Plaintiff committed any crime.
60. Plaintiff's injury was a foreseeable result of Defendant officers unlawful conduct and was the proximate cause of their injuries.

61. At all times relevant hereto, Defendants were involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of their fellow officers when they observed Plaintiff's arrest without probable cause.
62. At all times relevant hereto, Defendants were involved in the decision to violate Plaintiff's civil rights, including falsely arresting Plaintiff, and failed to intervene in the actions of their fellow officers.
63. The City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. From reform-minded Commissioner Patrick Murphy to the *Mollen* Commission twenty-five years later, the City has been repeatedly cautioned that a systemic tolerance for brutality flourishes throughout the NYPD. Indeed, years before said violation was perpetrated upon Plaintiff, the *Mollen* Commission report noted, "This tolerance, or willful blindness, extends to supervisors as well.
64. Plaintiff asserts that the Defendants who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar conduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission of such constitutionally violent behavior has become tantamount to an official policy or custom within the NYPD, and the City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the Civil Rights of those who may come into contact with police officers.
65. The individually named Defendants herein, as well as other officers serving in the employee of the NYPD, and the City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and

protected by the Constitution of the United States, in addition to the laws and Constitution of the State of New York, or without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, The City of New York and their respective policymakers and supervisors.

66. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption with the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead reward and promote these officers including those who are implicated via some incontrovertible form of evidence.
67. On March 18, 2018, *The New York Times* published an explosive article entitled *Promotions, Not Punishments For Officers Accused of Lying*, written by Joseph Goldstein. Mr. Goldstein shines the light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity of this type of evidence, in alarmingly small percentage of officers' misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's reluctance or to investigate or disciplines officers who lie and posits that this reluctance is a significant cause of the lying pandemic within the NYPD.

The article references various officers and detectives who were the subject of credible accusation relating to the officers intentionally false statements, with some allegations coming from federal and state judges.

68. The NYPD has a long-standing and ignominious record of failing to discipline its officers or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article entitled *2495 Reports of Police Bias*. One was deemed valid by the NYPD worried that within the last five years almost 2,500 several individuals have filed formal complaint with the NYPD alleging that an officer acted with biased towards them, would not one single being substantiated by the NYPD such a finding is playing the incredible and obviously the result of a deliberately poor or non-existent investigatory protocol the report commitment to combat the prejudices and the bias is exhibited by many of their officers.
69. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause
70. Upon information and belief, the NYPD, the city of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reason suspicion or the appropriate amount of force to be used.
71. Defendant's actions, pursuant to plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of plaintiff's civil rights that the tacit approval by the policymakers or supervisors of the NYPD, and the City of New

York, as well as their deliberate indifference towards the right of any individuals who may come into contact with dependents, should be inferred, because such makers deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers were supervisors of the NYPD, and City of New York.

72. Upon information and belief further details and facts relating to the unlawful policies customs or patterns and practices of the NYPD, the City of New York and their respective policymakers supervisors police officers or employees, will become known after the completion of Discovery, as such information is presently within the exclusive possession of defendants, the NYPD, and the City of New York
73. Upon information and belief, the personal files, records and disciplinary histories of the officers Defendants will reveal a history of constitutional violations indicative of Defendant City's, knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or poor employment in general, and that the probability of the individually named defendant committed similar violations in the future was extremely high.
74. Upon information and belief said personnel files records and disciplinary histories will conclusively show that the city, and the NYPD were fully aware Defendant passed constitutional violations, unacceptably high probability for the reoccurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as Law Enforcement Officers, or for employment in general, and not the NYPD, and the City of New York to engage in any preventative or corrective action in the likelihood of recurrence for such

violations, which is tantamount to the city of tacit approval of such misconduct or the city's deliberate indifference towards civil rights of those who may interact with employees including Plaintiff

75. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

Unlawful Stop Under
New York State Law

76. The above paragraphs are here incorporated by reference as though fully set forth.
77. Defendants violated Common Law, the Laws of the State of New York and the New York Constitution because they stopped Plaintiff without reasonable suspicion.
78. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
79. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to emotional and psychological injuries.
80. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

Unlawful Search and Seizure
42 U.S.C. § 1983 Against Individual Defendants

81. The above paragraphs are here incorporated by reference as though fully set forth.

82. Defendants entered Plaintiff's property apartment forcefully, entered the apartment without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.
83. That said warrantless entry constituted a search and seizure of Plaintiff's private property and violated Plaintiff's rights.
84. The police officer defendants while acting in concert and within the scope of their authority, caused plaintiff's home to be unlawfully entered, and the plaintiff to be unlawfully searched and seized, subjected to denial of their due process rights and without probable cause in violation of plaintiff's right to be free of an unreasonable search and seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
86. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
87. By reason of the foregoing, Plaintiff suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
88. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

89. The above paragraphs are here incorporated by reference as though fully set forth.
90. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
91. Plaintiff was conscious of their confinement.
92. Plaintiff did not consent to their confinement.
93. Plaintiff's arrest and false imprisonment was not otherwise privileged.
94. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
96. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

97. The above paragraphs are here incorporated by reference as though fully set forth.
98. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
99. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
100. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
103. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Failure to Intervene
New York State Law

104. The above paragraphs are here incorporated by reference as though fully set forth.
105. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
106. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
107. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Failure to Intervene
Under 42 U.S.C. § 1983 Against Individual Defendants

108. The above paragraphs are here incorporated by reference as though fully set forth.
109. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

110. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

111. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process
Under New York State Law

112. The above paragraphs are here incorporated by reference as though fully set forth.

113. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

114. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

115. Defendant intended to inflict substantial harm upon Plaintiff.

116. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

117. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

118. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process
Under 42 U.S.C. § 1983 Against Individual Defendants

119. The above paragraphs are here incorporated by reference as though fully set forth.

120. Dependents arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

121. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
122. Defendant intended to inflict substantial harm upon Plaintiff.
123. Defendant acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
124. Defendant's actions deprived plaintiff of their constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention and Supervision
Under New York State Law

126. The above paragraphs are here incorporated by reference as though fully set forth.
127. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
128. Defendant City breached that duty of care.
129. Defendant City placed defendants in a position where they could inflict foreseeable harm.
130. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
131. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
132. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

133. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

134. The above paragraphs are here incorporated by reference as though fully set forth.
135. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of their constitutional right to be free from malicious prosecution under Common Law, the Laws of the State of New York and the New York Constitution.
136. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.
137. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
138. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
139. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
140. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution
Under 42 U.S.C. §1983 Against Individual Defendants

141. The above paragraphs are here incorporated by reference as though fully set forth.

142. By their conduct, as described herein, Defendants are liable to Plaintiff for the violation of their constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
143. Defendants, acting with malice, initiated a prosecution against Plaintiff and caused him to be prosecuted.
144. The prosecution by Defendants of Plaintiff constituted malicious prosecution in that there was no basis for Plaintiff's arrest, yet Defendants continued with the prosecution, which was resolved in Plaintiff's favor.
145. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
146. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
147. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

148. The above paragraphs are here incorporated by reference as though fully set forth.
149. Defendants made plaintiff fear for their physical well-being and safety and placed plaintiff in apprehension of immediate harmful and/or offensive touching.
150. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without him consent.

151. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.
152. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
153. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRTEENTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983

154. The above paragraphs are here incorporated by reference as though fully set forth.
155. The defendants, including Defendant's Llano violated the Fourth and Fourteenth Amendments because they used unreasonable force on the plaintiff without consent.
156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Municipal "Monell" Liability
42 U.S.C. § 1983 Against Individual Defendants

157. The above paragraphs are here incorporated by reference as though fully set forth.
158. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

159. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of their civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such a violent behavior.
160. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
161. Defendant City, its policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City's deliberate indifference towards the rights of those who may come into contact with defendant City's employees.
162. Defendant City's employees engaged in such a egregious and flagrant violations of Plaintiff's constitutional right that the need for enhanced training or supervision is obvious and equates to a display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
163. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.
164. Defendant City's conduct cause the violation of Plaintiff civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:
- a) Not to be deprived of liberty without due process of law;
 - b) To be free from seizure and arrest not based upon probable cause;
 - c) Not to have summary punishment imposed upon her; and

d) To receive equal protection under the law.

165. As a direct and proximate result of this conduct, Plaintiff sustained the damages hereinbefore alleged.

JURY DEMAND

166. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally:

- a) For each and every of the previously stated Cause(s) of Action, a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter; and
- b) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- c) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
September 23, 2021



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **DEVERNA LAW**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county where I maintain my office.

Dated: New York, New York
September 23, 2021



DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

Index No. :

SUPREME COURT OF THE STATE OF NE W YORK

COUNTY OF BRONX

MARVIN TOBON,

Plaintiff,

-against-

CITY OF NEW YORK; BENJAMIN GURLEY; JOHN AND JANE DOE ONE THROUGH EIGHT

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DEVERNA LAW
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1615
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s)for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for